

CALLISON, et al. v. ORTIZ, et al.

20CV45077

DEFENDANTS' MOTION FOR JUDGMENT ON THE PLEADINGS

This is a breach of contract action relating to the sale of real property. Before the Court is an unopposed defense motion for judgment on the pleadings.

Defendants' Motion for Judicial Notice is granted pursuant to Evidence Code Sections 452 and 453.

This action was commenced by way of complaint filed on 12/02/20 by plaintiffs Dan Callison (hereinafter "Callison") and Pollock & James, LLP (hereinafter "P&J"). According to the allegations of the operative pleading, both Callison and P&J had vested interests in the referenced real property transaction.

On 10/06/21, new counsel for Callison filed a Request for Dismissal on behalf of P&J, despite there being no documentation in the court file that P&J ever retained Attorney Jeffrey in this action or that said counsel had in fact substituted as that party's representative. The dismissal was entered, but as it turns out, entered improvidently. The dismissal is vacated, returning P&J to the status of self-represented party.

As for the merits, a statutory motion for judgment on the pleadings is similar to a demurrer, except that the motion (1) can be made at any time 30 days prior to the initial trial date, but (2) only after defendant has answered and (3) only on the grounds of subject-matter jurisdiction or failure to state a cause of action. (CCP §438(c)-(f).) The rules governing pleading scrutiny are the same as those applicable to demurrers. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321; *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) The motion is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. In general, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (*Southern California Edison Company v. City of Victorville* (2013) 217 Cal.App.4th 218, 227; *Shields v. Hennessy Industries, Inc.* (2012) 205 Cal.App.4th 782, 785.)

The Court finds that the operative pleading herein does fail to state a cause of action upon which relief may be given. Whether the underlying agreement is written, oral, or implied, the elements for breach of contract are: (1) parties capable of contracting, (2) mutual consent, (3) a lawful object, (4) sufficient cause or consideration, (5) plaintiff's performance or excuse for failure to perform, (6) defendant's breach, and (7) damage. (Civil Code §§ 1550, 1605; *Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 453; *Gomez v. Lincare, Inc.* (2009) 173 Cal.App.4th 508, 525.) Precision or *in haec verba*

is not required, nor is attaching the actual contract if in writing; rather, pleading the legal effect (ie, enough facts to show actionable breach of an enforceable agreement) is good enough. (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 401-402.)

Here, the operative pleading describes a written agreement in which defendants would pay to plaintiffs the equity received from a sale involving real property, but no description of the lawful object or consideration therefore. Defendants offer via judicial notice that defendant Riordan agreed in 2017 to pay Callison almost \$1Million, and plaintiffs may have believed that his agreement to repay that debt created an enforceable contract with Ortiz (as home owner). To the extent this suit is an effort to collect on a pre-existing debt from Riordan, defendants are correct that this would be a collection matter to be addressed in the Sonoma County proceeding. Either way, it is not clear how P&J or Ortiz are involved at all.

Based on the foregoing, defendants' motion is GRANTED. As no opposition was filed, the Court finds this is tantamount to a failure to indicate the nature of a proposed amendment or otherwise indicate the manner by which plaintiffs would cure the defect. Therefore, pursuant to *Tiffany v Sierra Sands Unified School District* (1980) 103 CalApp 3rd 218, the granting is without leave to amend.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to prepare a formal Judgment pursuant to Rule of Court 3.1312 in conformity with this ruling.